



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Senior Planner
Subject: PLTA-24-7 – Amending UDC to modify required façade materials for multifamily buildings.
Date: November 25, 2024

Background:

The Governing Body heard a similar proposal in late 2023. The Planning Commission in 2023 had modified the amendment to propose removing any requirement to vary materials. The Governing Body did not approve the amendment as presented by the Planning Commission. However, upon reconsideration, the Governing Body approved an amendment to require only variation if the housing was income-restricted. The original version as presented to the Planning Commission in 2023 is being brought back forward at the specific request of Councilman Dr. Rinne.

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 11/25/2024
- Public Services Committee 12/3/2024
- Second reading 12/9/2024
- Public Services Committee 12/17/2024
- Third and final reading 12/23/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their November 18, 2024, meeting and unanimously voted to recommend the Governing Body approve the proposed text amendment without modifications.

The Planning Commission Staff report is attached and has not been changed. The Ordinance in this packet is not substantively changed from the amendment reviewed by the Planning Commission.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SUBSECTIONS 6.6.3.b.3, 6.7.5.c, AND 6.9.4.e OF THE UNIFIED DEVELOPMENT CODE (UDC), CHANGING BUILDING FAÇADE DESIGN REQUIREMENTS FOR MULTIFAMILY RESIDENTIAL DEVELOPMENT."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code.

Section 2. That on November 18, 2024, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Subsection 6.6.3.b.3 Materials for Multi-dwelling buildings, of Subsection 6.6.3.b Building Design, of Subsection 6.6.3 General Residential Design, of Section 6.6 Residential Design Standards, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

3. *Materials for Multi-dwelling buildings.* All attached dwelling and multi-dwelling building types shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2' and 8' above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section.
- (a) Primary Materials. All buildings shall have not less than two primary materials covering at least 90% of the building facades.
No one primary material may cover more than 70% of the facades. No one color may cover more than 70% of the facades (colors shall be distinctly different, if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director's determination to the Board of Adjustment).
- (b) Accent Materials. Buildings shall have at least one accent or trim material covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.
- (c) Permitted Materials. Exterior materials shall be permitted in accordance with Table 6-18.

Table 6-18: Residential Building Materials		
Primary Materials		Accent / Trim Materials

Brick, unpainted (or equal or better simulated material) Stone, unpainted (or equal or better simulated material) Glass (Opaque) Metal Siding & Roofing (non-corrugated) Color Concrete Stucco (or equal or better simulated material) Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material) Wood, aluminum, or fiber cement lap siding Wood, aluminum, or fiber cement board and batten siding		Any of the Primary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)
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(d) Material Changes. Except for accent materials, changes in the facade material shall only occur at horizontal expression lines, with the heavier material below the lighter material. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements.

(e) Equal or Better Simulated Materials. Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:

- (1) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
- (2) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
- (3) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
- (4) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Section 4. That Subsection 6.7.5.c Building Materials, of Subsection 6.7.5 Building Design, of Section 6.7 Small Scale Commercial and Mixed-use Design Standards, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

- c. ***Building Materials.*** All buildings and accessory buildings over 200 square feet shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2’ and 8’ above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section.

1. *Primary Materials.* All buildings shall have one primary material covering at least 30% of the building facades. Buildings which are more than 50% residential dwelling units (by square footage) may use any of the Secondary Materials as a primary material provided: (a) No less than 2 primary/secondary materials are used; (b) No one primary/secondary material covers more than 70% of the facades; and (c) No one color covers more than 70% of the facades (colors shall be distinctly different, if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director's determination to the Board of Adjustment).
2. *Secondary Materials.* Buildings may have a secondary material covering up to 70% of the facades.
3. *Accent Materials.* Buildings shall have at least one, and may have up to two accent or trim materials covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.
4. *Permitted Materials.* Exterior materials shall be permitted in accordance with Table 6-20.

Table 6-20: Small-scale Commercial and Mixed-use Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted (or equal or better simulated material) Stone, unpainted (or equal or better simulated material)	Any of the Primary Materials may be used as Secondary Materials Glass (opaque) Metal Siding and Roofing Color Concrete Stucco (or equal or better simulated material) Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material) Vertical Wood Board and Batten (or equal or better simulated material)	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)

5. *Material Changes.* Except for accent materials, changes in the façade material shall only occur at horizontal expression lines, with the heavier material below the lighter material. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements of Sub-section a above.
6. *Equal or Better Simulated Materials.* Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:
 - a. The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
 - b. The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;

- c. The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
- d. Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Section 5. That Subsection 6.9.4.e Building Materials, of Subsection 6.9.4 Building Design, of Section 6.9 General Commercial Design Standards, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

- e. ***Building Materials.*** All buildings and accessory buildings over 200 square feet shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2’ and 8’ above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section.
 - 1. ***Primary Materials.*** All buildings shall have one primary material covering at least 30% of the building facades. Buildings which are more than 50% residential dwelling units (by square footage) may use any of the Secondary Materials as a primary material provided:
 - (a) No less than 2 primary/secondary materials are used;
 - (b) No one primary/secondary material covers more than 70% of the facades; and
 - (c) No one color covers more than 70% of the facades (colors shall be distinctly different, if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director’s determination to the Board of Adjustment).
 - 2. ***Secondary Materials.*** Buildings may have a secondary material covering up to 70% of the facades.
 - 3. ***Accent Materials.*** Buildings shall have at least one, and may have up to two accent or trim materials covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.
 - 4. ***Permitted Materials.*** Exterior materials shall be permitted in accordance with Table 6-21.

Table 6-21: General Commercial and Mixed-use Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted (or equal or better simulated material) Stone, unpainted (or equal or better simulated material). Concrete Masonry Unit –	Any of the Primary Materials may be used as Secondary Materials Glass (opaque) Metal Siding and Roofing Architectural Metal Panels or Tiles Color Concrete Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material)	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural

Integrally tinted and textured	Stucco (or equal or better simulated material) Vertical Wood Board and Batten (or equal or better simulated material)	details (or equal or better simulated material)
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5. *Material Changes*. Except for accent materials, changes in the façade material shall only occur at horizontal expression lines. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements above.
6. *Equal or Better Simulated Materials*. Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:
 - (a) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
 - (b) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
 - (c) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
 - (d) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

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PLANNING COMMISSION

NOVEMBER 18, 2024

STAFF REPORT

REQUEST: A Text Amendment amending subsections 6.6.3.b.3, 6.7.5, and 6.9.3.e of the Unified Development Code (UDC), changing building façade design requirements for multifamily residential development

CASE NUMBER: PLTA-24-7

PREPARED BY: Seth Lloyd, AICP Senior Planner, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the City Council is authorized under UDC 2.4.1.b.1 to bring forward text amendments on their own initiative.

The proposed text amendment is to change various sections of code regarding façade design requirements requiring brick and stone on multifamily buildings. Multifamily buildings in the residential and mixed-use zones follow the design requirements found in 6.6. However, multifamily buildings are also called 'Urban Lofts' in certain scenarios, applying the design requirements of 6.7 in these cases; and multifamily buildings are allowed via conditional use in the commercial zones, which would apply the design standards of 6.9. Various zone districts also allow mixed-use buildings, which could be used as a majority multifamily and in some cases may have multifamily on the ground floor. The code amendment proposes removing the requirement for brick and stone for multifamily buildings and bringing clarity to the materials requirements.

The current code requires unpainted brick or stone on 30% of the building façades, and does not allow these to be replaced with simulated brick or stone materials. The affordable housing task force

recommended that the materials requirement be modified such that brick or stone was not required on multifamily structures.

The requirement for brick and stone is largely aesthetic, as such materials are only a veneer on the materials actually used in construction and have little effect on the structure. Brick and stone may be more durable than other materials that could be selected for veneer. As a largely aesthetic regulation, Staff proposes changing the code to require two distinct materials and two distinct colors, instead of requiring brick or stone.

The Planning Commission heard this proposal in late 2023 and modified the amendment to propose removing any requirement to vary materials. The Council did not approve the amendment as presented by the Planning Commission. However, upon reconsideration, the Council approved an amendment to require only variation if the housing was income-restricted. It is being brought back forward at the specific request of Councilman Dr. Rinne.

PROPOSED AMENDMENTS:

Subsection 6.6.3.b.3 Materials for Multi-dwelling buildings

(of 6.6.3.b Building Design, of 6.6.3 General Residential Design, of 6.6 Residential Design Standards):

3. *Materials for Multi-dwelling buildings.* All attached dwelling and multi-dwelling building types shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2' and 8' above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section.
 - (a) Primary Materials. All buildings shall have ~~one not less than two~~ primary materials covering at least ~~30%~~ 90% of the building facades. ~~Buildings which provide housing that is income-restricted to eighty percent (80%) of area median income (AMI) as defined by the U.S. department of housing and urban development (HUD) for a period of not less than fifteen (15) years may use any of the Secondary Materials as a primary material provided:~~
 - ~~(1) No less than 2 primary/secondary materials are used;~~
 - ~~(2) No one primary/secondary material covers more than 70% of the facades;~~ ~~and~~
 - ~~(3) No one color covers more than 70% of the facades (colors shall be distinctly different, if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director's determination to the Board of Adjustment).~~
 - ~~(b) Secondary Materials. Buildings may have a secondary material covering up to 70% of the facades.~~
 - ~~(c)~~ (b) Accent Materials. Buildings shall have at least one~~7~~ accent or trim material covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.
 - ~~(d)~~ (c) Permitted Materials. Exterior materials shall be permitted in accordance with ~~the~~ Table 6-18.

Table 6-18: Residential Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted: <u>(or equal or better simulated material)</u> Stone, unpainted: <u>(or equal or better simulated material)</u> Glass (Opaque) Metal Siding & Roofing (non-corrugated) Color Concrete Stucco (or equal or better simulated material) Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material) Wood, aluminum, or fiber cement lap siding Wood, aluminum, or fiber cement board and batten siding	Any of the Primary Materials may be used as Secondary Materials Glass Metal Siding & Roofing Color Concrete Stucco (or equal or better simulated material) Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material)	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)

~~(e)-(d)~~ Material Changes. Except for accent materials, changes in the facade material shall only occur at horizontal expression lines, with the heavier material below the lighter material. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements.

~~(f)-(e)~~ Equal or Better Simulated Materials. Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:

- (1) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
- (2) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
- (3) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
- (4) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Subsection 6.7.5.c Building Materials

(of 6.7.5 Building Design, of 6.7 Small Scale Commercial and Mixed-use Design Standards):

- c. **Building Materials.** All buildings and accessory buildings over 200 square feet shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2’ and 8’ above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section.

1. **Primary Materials.** All buildings shall have one primary material covering at least 30% of the building facades. Buildings which are more than 50% residential dwelling units (by square footage) may use any of the Secondary Materials as a primary material provided: Residential buildings which provide housing that is income-restricted to eighty percent (80%) of area

median income (AMI) as defined by the U.S. department of housing and urban development (HUD) for a period of not less than fifteen (15) years may use any of the Secondary Materials as a primary material provided:

- (1a) No less than 2 primary/secondary materials are used;
- (2b) No one primary/secondary material covers more than 70% of the facades; and
- (3c) No one color covers more than 70% of the facades (colors shall be distinctly different, if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director's determination to the Board of Adjustment).

2. *Secondary Materials.* Buildings may have a secondary material covering up to 70% of the facades.

3. *Accent Materials.* Buildings shall have at least one, and may have up to two accent or trim materials covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.

4. *Permitted Materials.* Exterior materials shall be permitted in accordance with Table 6-20.

Table 6-20: Small-scale Commercial and Mixed-use Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted- <u>(or equal or better simulated material)</u> Stone, unpainted- <u>(or equal or better simulated material)</u>	Any of the Primary Materials may be used as Secondary Materials Glass <u>(opaque)</u> Metal Siding and Roofing Color Concrete Stucco (or equal or better simulated material) Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material) <u>Vertical Wood Board and Batten (or equal or better simulated material)</u>	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)

5. *Material Changes.* Except for accent materials, changes in the façade material shall only occur at horizontal expression lines, with the heavier material below the lighter material. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements of Sub-section a above.

6. *Equal or Better Simulated Materials.* Where "equal or better" simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:

- a. The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
- b. The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
- c. The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
- d. Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Subsection 6.9.4.e Building Materials

(of 6.9.4 Building Design, of 6.9 General Commercial Design Standards):

- e. **Building Materials.** All buildings and accessory buildings over 200 square feet shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2' and 8' above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section.
1. **Primary Materials.** All buildings shall have one primary material covering at least 30% of the building facades. ~~Buildings which are more than 50% residential dwelling units (by square footage) may use any of the Secondary Materials as a primary material provided: Residential buildings which provide housing that is income-restricted to eighty percent (80%) of area median income (AMI) as defined by the U.S. department of housing and urban development (HUD) for a period of not less than fifteen (15) years may use any of the Secondary Materials as a primary material provided:~~
 - (a) No less than 2 primary/secondary materials are used;
 - (b) No one primary/secondary material covers more than 70% of the facades; and
 - (c) No one color covers more than 70% of the facades (colors shall be distinctly different, if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director's determination to the Board of Adjustment).
 2. **Secondary Materials.** Buildings may have a secondary material covering up to 70% of the facades.
 3. **Accent Materials.** Buildings shall have at least one, and may have up to two accent or trim materials covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.
 4. **Permitted Materials.** Exterior materials shall be permitted in accordance with Table 6-21.

Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted- (or equal or better simulated material) Stone, unpainted (or equal or better simulated material). Concrete Masonry Unit —Integrally tinted and textured	Any of the Primary Materials may be used as Secondary Materials Glass (opaque) Metal Siding and Roofing Architectural Metal Panels or Tiles Color Concrete Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material) Stucco (or equal or better simulated material) Vertical Wood Board and Batten (or equal or better simulated material)	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)

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6. **Equal or Better Simulated Materials.** Where "equal or better" simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:

- (a) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
- (b) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
- (c) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
- (d) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

The Comprehensive plan encourages the development of workforce housing and housing for Seniors (Principle 2). PlanCheyenne encourages workforce housing to be made of high-quality materials, and with architectural details that are functional and attractive (Policy 2.5.c). Another policy states that design standards should be created to address should be high-quality, but no specific materials are mentioned.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601. Regulations; scope and purpose; uniformity within authorized districts; to follow plan; objectives.

- (a) The governing body of any city or town, by ordinance, may:
 - (i) Regulate and restrict the:
 - (A) Height, number of stories and size of buildings and other structures;
 - (B) Percentage of lot that may be occupied;
 - (C) Size of yards, courts and other open spaces;
 - (D) Density of population; and
 - (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.
 - (ii) Establish setback building lines.
- (b) The governing body may divide the city or town into districts of such number, shape and area as it deems necessary, and within those districts it may regulate and restrict the erection, construction, reconstruction, alteration, repair or use of buildings, structures or land.
- (c) Regulations may differ from one (1) district to another but shall be uniform for each class or kind of buildings within a district.

- (d) All regulations shall be made:
- (i) In accordance with a comprehensive plan and designed to:
 - (A) Lessen congestion in the streets;
 - (B) Secure safety from fire, panic and other dangers;
 - (C) Promote health and general welfare;
 - (D) Provide adequate light and air;
 - (E) Prevent the overcrowding of land;
 - (F) Avoid undue concentration of population; and
 - (G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.
 - (ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
 - (iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town; and
 - (iv) With consideration given to the historic integrity of certain neighborhoods or districts and a view to preserving, rehabilitating and maintaining historic properties and encouraging compatible uses within the neighborhoods or districts, but no regulation made to carry out the purposes of this paragraph is valid to the extent it constitutes an unconstitutional taking without compensation.

Assessment: This amendment proposes modifying the Unified Development Code to modify sections of code in accordance with the general welfare and character of the community. The regulations and the modifications to the regulations are allowed by state statute.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would not adversely impact the general health, safety and public welfare of Cheyenne. While reducing construction costs, the amendment attempts to still assure the aesthetic values of the community are met.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.